IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No402

CP(CAA)/1(AHM)2023
in
CA(CAA)/74(AHM)2021

Proceedings under Section 230-232 of Co. Act, 2013

IN THE MATTER OF:

Ideal Stationery Mfging Company Pvt Ltd **.....Applicant**
Ideal Textile Machinery Components Pvt Ltd
Ideal Sheet Metal Stampings & Pressings Pvt Ltd **.....Respondent**

Order delivered on ..24/04/2023

Coram:

Deep Chandra Joshi, Hon'ble Member(J)
Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant : Ms. Noopur Dalal, Adv.
For the RD : Mr. Shiv Pal Singh, Asst. Director (NWR)

ORDER

The clarification is sought on following two points:

1. On the perusal of the records, it is found that the petitioner companies (Transferor Company No. 1 & 2) failed to reply the clarifications sought in "clause 7' of the report of the Official Liquidator. Similarly, the Regional Director in its report in 'clause (f)' also sought justification from the petitioner companies concerning the appointed date, which is significantly ante-dated beyond a year from the date of filing, which is required as per para 6(c) of MCA circular No. 09/2019 dated 21.08.2019. No justification/clarification has been given in the reply dated 17.03.2023 filed to response to the report of RD and OL.

2. The petitioner companies failed to annex the copy of the schedule of property/Assets.

Learned Counsel Ms. Noopur Dalal appears for the petitioner companies and states that necessary compliance will be made within one week.

List for hearing on 03.05.2023.

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AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

DEEP CHANDRA JOSHI
MEMBER (JUDICIAL)

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